

duty or some contractual obligation, not prompted by honest mistake ..., but by some interested or sinister motive[,] ... not simply bad judgment or negligence, but rather ... the conscious doing of a wrong because of dishonest purpose or moral obliquity; ... it contemplates a state of mind affirmatively operating with furtive design or ill will.” (*Silver Orgs.* 217 Cal.App.3d at 99 quoting *Pugh v. See’s Candies, Inc.* (1988) 203 Cal.App.3d 743, 764.) Section 426.50 “expressly disallows” denial of a motion on a mere showing of neglect, inadvertence, or oversight. (*Id.* at 101.)

“The principle is well settled in this state that a defendant may cross-complaint for a declaration of the duty of a cross-defendant to indemnify a cross-complainant in the event the latter is held liable to the plaintiff in the main action.” (*Brokate v. Hehr Mfg. Co.* (1966) 243 Cal.App.2d 133, 137-38.) Bringing an action for indemnity or contribution by cross-complaint promotes judicial efficiency and allows related evidence and matters of proof to be consolidated in a single proceeding. (*Valley Circle Estates v. VTN Consolidated, Inc.* (1983) 33 Cal.3d 604, 614-15.) As the California Supreme Court noted, “[overburdened] courts gain nothing from a rule which would discourage the filing of cross-actions in favor of independent actions.” (*Id.* at 615 quoting *Shepard & Morgan v. Lee & Daniel, Inc.* (1982) 31 Cal.3d 256, 261.) The Court has “consistently concluded that the cross-action procedure represents a ‘more orderly and expeditious resolution of the controversy’ in multiple party cases.” (*Ibid.*)

Conclusion

Defendants’ motion for a nunc pro tunc order is **denied** as moot. There is no order to ‘correct.’ The Cross-Complaint has already been accepted and filed.

11. 9:00 AM CASE NUMBER: C23-01442
CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ
***HEARING ON MOTION IN RE: RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25**
TENTATIVE RULING GRANTING ARCH INSURANCE COMPANY’S MOTION FOR LEAVE TO FILE A
COMPLAINT IN INTERVENTION
FILED BY: DUFALL, SIOBHAN
TENTATIVE RULING:

Continued by the Court to May 6, 2026 at 9:00 a.m. No appearance is required on March 25, 2026.

12. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ELIYAHU Y KAPLUNOVSKY**
FILED BY: JRT FREIGHT, LLC
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 12 and 13. Counsel Eliyahu Y. Kaplunovsky, who represents Defendants JRT Freight LLC and Luis Martinez (“Defendants”), filed a Motion to Be Relieved as Counsel for both Defendants. The Motion is **granted** as set forth herein.

Background

This is an employment and wrongful termination case whereby Plaintiff Jose Antonio Gonzales Marquez ("Plaintiff") alleges that his employers, Defendants, subjected him to discrimination during his employment and retaliated against based on his race. Plaintiff also contends that Defendants denied him rest breaks, overtime pay and did not pay him all of this wages for time worked.

Counsel Eliyahu Y. Kaplunovsky filed this Motion to Be Relieved as Counsel on December 2, 2026, supported by his declaration claiming that "JRT Trucking, LLC and its managing members have refused to cooperate with Mr. Kaplunovsky [] and has severely affected Attorney's ability to adequately represent JRT." Further, Counsel claims that "Defendants have breached their retainer agreement with the firm and refuse to pay for the services completed; Mr. Kaplunovsky and the firm have conveyed to Defendants that these breaches in multiple conversations, and offered solutions. However, the Defendants have failed to uphold their obligations to pay for the firm's services."

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Plaintiff's Counsel. The Court acknowledges that the prejudice to the Parties is minimal, as there is ample time for Defendant to retain trial counsel. Furthermore, there is no trial date set in this case.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the two Proposed Orders Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 2, 2025. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Defendants by mail at their last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).